

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Jennifer Smith	Team: Squad #14	CCRB Case #: 201709052	☐ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Wednesday, 10/25/2017 1:51 PM	Location of Incident: CubeSmart	18 Mo. SOL 4/25/2019	Precinct: 78
Date/Time CV Reported Wed, 10/25/2017 7:05 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 11/01/2017 11:03 AM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. SGT Thomas Chan	01232	941535	078 PCT
2. POM Patrick Coriell	17163	958436	078 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Lisandro Pena	11685	952101	078 PCT
2. POM Matthew Garone	09257	960580	078 PCT
3. POM William Jones	16166	957717	078 PCT
4. POM Travis Grant	18031	960615	078 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Patrick Coriell	Abuse: Police Officer Patrick Coriell refused to provide his name and/or shield number to § 87(2)(b)	A . Unsubstantiated
B . SGT Thomas Chan	Discourtesy: Sergeant Thomas Chan spoke discourteously to § 87(2)(b)	B . Unsubstantiated

Case Summary

On October 25, 2017, § 87(2)(b) called the IAB command center and filed this complaint, which was received at the CCRB on November 1, 2017.

On October 25, 2017, at approximately 1:51 p.m., Police Officer Patrick Coriell and Police Officer Matthew Garone of the 78th Precinct arrived at CubeSmart, located at 338 3rd Avenue in Brooklyn, in response to § 87(2)(b)'s 911 call regarding her dispute with CubeSmart employees. PO Coriell allegedly refused to provide his name and shield number to § 87(2)(b) (**Allegation A: Abuse of Authority**, § 87(2)(g)). When § 87(2)(b) called 911 again and requested that a supervisor respond, Sergeant Thomas Chan and Police Officer Lisandro Pena of the 78th Precinct arrived and Sgt. Chan allegedly told § 87(2)(b) "Good luck with getting your shit" (**Allegation B: Discourtesy**, § 87(2)(g)).

No arrest or summons resulted from this incident.

There is no video footage regarding this complaint.

Findings and Recommendations

Allegation A-Abuse of Authority: Police Officer Patrick Coriell refused to provide his name and/or shield number to § 87(2)(b)

§ 87(2)(b) (01 Board Review) said she called 911 and reported that CubeSmart employees denied her access to her storage unit. PO Coriell and PO Garone arrived first, and told § 87(2)(b) that officers could not file a police report or order CubeSmart to release her belongings because her complaint was a landlord/tenant issue. § 87(2)(b) asked PO Coriell for his name and shield number while standing approximately two or three feet away from him. PO Coriell allegedly replied, "Well, it's in plain view," and pointed to his shield. § 87(2)(b) was unable to read PO Coriell's name and shield number because she did not have her glasses on. § 87(2)(b) said she did not want to step closer to PO Coriell, so she asked him to state his name and shield number. PO Coriell pointed to his shield again and allegedly repeated that the information was in plain view for § 87(2)(b) to see. § 87(2)(b) told PO Coriell to either call his supervisor or state his name and shield number. PO Coriell allegedly refused to do either. § 87(2)(b) said, "Are you a fucking idiot?" PO Coriell said he was "done" and left the scene with PO Garone.

PO Coriell's statement (04 Board Review) was generally consistent with § 87(2)(b)'s statement, though he said that in response to her request for his name and shield number, he stated, "Coriell, 17163." PO Coriell never refused to provide his name and shield number to § 87(2)(b) and she never said she could not see PO Coriell's name and shield number.

§ 87(2)(g)
PO Garone said that § 87(2)(b) could not see PO Coriell's name for reasons he did not understand. PO Coriell and PO Garone both stated their names and shield numbers to § 87(2)(b) though she only asked for PO Coriell's information. PO Garone denied hearing PO Coriell refuse to provide his name and shield number to § 87(2)(b).

§ 87(2)(g)
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§ 87(2)(g).

Allegation B-Discourtesy: Sgt. Thomas Chan spoke discourteously to § 87(2)(b)

§ 87(2)(b) said she called 911 again and requested a supervisor to the scene. When Sgt. Chan arrived, he repeated what PO Coriell and PO Garone told her about the dispute. Sgt. Chan said he could not file a police report regarding her dispute with CubeSmart because it

was a civil dispute and he advised § 87(2)(b) to call an attorney, which she refused to do. Sgt. Chan allegedly said, “Alright. Well, good luck with getting your shit because I don’t know how many times you want me to tell you this is a civil matter.” Sgt. Chan and PO Pena spoke to CubeSmart employees and then he left the scene.

Sgt. Chan said that when he arrived at CubeSmart, he spoke to CubeSmart employees before speaking to § 87(2)(b) (02 Board Review). CubeSmart employees maintained that § 87(2)(b) failed to pay rent for her storage unit, but said that if she returned to CubeSmart with a truck, they would release her belongings. § 87(2)(b) was agitated that Sgt. Chan spoke to CubeSmart prior to speaking to her. Sgt. Chan explained that CubeSmart was giving § 87(2)(b) the option to completely liquidate her storage unit if she brought a truck. § 87(2)(b) wanted Sgt. Chan to order CubeSmart to release her belongings. § 87(2)(b) s tone of voice escalated. Sgt. Chan repeatedly explained to § 87(2)(b) why he could not file a police report for her or order CubeSmart to release her belongings over the course of 29 minutes. § 87(2)(b) still did not understand. Sgt. Chan said to § 87(2)(b) “Ma’am, I’ve explained it to you three times. I cannot explain it to you anymore. I have to leave.” § 87(2)(b) said, “You’re going to keep explaining to me over and over and over until I get it, or I get what I want.” Sgt. Chan said, “No ma’am” and left the scene with PO Pena. Sgt. Chan never made the alleged discourteous statement to § 87(2)(b).

PO Pena’s statement was generally consistent with Sgt. Chan’s statement. He denied hearing Sgt. Chan make the alleged discourteous statement.

§ 87(2)(g)

Civilian and Officer CCRB Histories

- This is the first complaint to which § 87(2)(b) has been a party (05 Board Review).
- PO Coriell has been a member-of-service for two years and has been a subject in one CCRB complaint and one allegation, which was not substantiated. § 87(2)(g)
- Sgt. Chan has been a member-of-service for 11 years and has been a subject in five CCRB complaints and four allegations, none of which were substantiated. § 87(2)(g)

Mediation, Civil and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- As of May 4, 2018, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regards to this complaint (07 Board Review).

Squad No.: 14

Investigator: _____

Signature

Print Title & Name

Date

Squad Leader: _____
Signature Print Title & Name Date